

Shambhu Yadav v. Managing Director, U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 July 2020 · WRIT - C No. - 11140 of 2020 · **Writ dismissed as not entertainable; petitioner relegated to s.126(3) read with clause 8.1.**

HEADNOTE

A writ challenging a recovery notice issued on an allegation of theft of electricity is not entertainable. The consumer must approach the competent authority under section 126(3) of the Electricity Act, 2003 read with clause 8.1 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Shambhu Yadav filed a writ in the Allahabad High Court against the Managing Director, U.P. Power Corporation Limited and two others, challenging recovery on a notice dated 1 October 2019. The Court recorded that the notice, at page 20 of the paper book, alleged theft of electricity. Nobody appeared for the petitioner on 10 July 2020, when the matter was directed to be listed as a fresh case, or on 28 July 2020, when counsel appeared for respondent no. 2.

HOLDING-UNITS

INTERPLAY · EA2003::126(3)

theft recovery — writ vs assessing authority

HOLDING

A writ petition seeking to challenge recovery proceedings on an allegation of theft of electricity cannot be entertained. The appropriate remedy is to approach the competent authority under section 126(3) of the Electricity Act, 2003 read with clause 8.1 of the Electricity Supply Code, 2005. ¶ 2

PRINCIPLE TAGS

theft-recovery-writ-not-entertainable-s126-clause-8.1 The Division Bench refused to entertain a writ against a theft-of-electricity recovery notice and directed the petitioner to the competent authority under s.126(3) read with clause 8.1. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ALLEGATION AND VALIDITY OF THE RECOVERY NOTICE DATED 01.10.2019

The Court did not examine the notice or the alleged theft; it dismissed the writ as not entertainable. ¶ 2